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Bluebook 22nd ed. 1930 462 .

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Kentucky - General Assembly, Regular Session : 462-475. HeinOnline.

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Ninety-seventh district of the counties of Letcher and Perry.

Ninety-eighth district of the counties of Leslie and Harlan.

Ninety-ninth district of the counties of Knott and Magoffin.

One hundredth district of the county of Morgan.

All acts and laws in conflict herewith to the extent of such conflict are hereby repealed.

Disapproved March 18, 1930. Passed House of Representatives March 19, 1930, the Governor's veto to the contrary notwithstanding. Passed Senate March 20, 1930, the Governor's veto to the contrary notwithstanding.

CHAPTER 148.

AN ACT repealing and re-enacting Section 2000, Kentucky Statutes, Carroll's 1922 Edition, being an Act dividing the State of Kentucky into thirty-eight senatorial districts as provided by Section 33 of the Constitution.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

That Section 2000 of the Kentucky Statutes, Carroll's 1922 Edition, be repealed and re-enacted so that said section as re-enacted shall read as follows:

The State of Kentucky shall be and the same is hereby divided into thirty-eight senatorial districts as follows:

District one. The counties of Graves, Hickman, and Fulton, shall be senatorial district number one.

District two. The counties of Carlisle, Ballard, McCracken and Marshall shall be senatorial district number two.

District three. The counties of Caldwell, Callo-way, Lyon and Trigg, shall be senatorial district number three.

District four. The counties of Livingston, Crit-

tenden, and Union shall be senatorial district number four.

District five. The counties of Henderson and Webster shall be senatorial district number five.

District six. The counties of Christian and Hopkins shall be senatorial district number six.

District seven. The counties of Muhlenberg, Ohio and Butler shall be senatorial district number seven.

District eight. The counties of Daviess and McLean shall be senatorial district number eight.

District nine. The counties of Logan, Simpson and Todd shall be senatorial district number nine.

District ten. The counties of Hancock, Grayson, Breckinridge and Hart shall be senatorial district number ten.

District eleven. The counties of Allen, Edmonson and Warren shall be senatorial district number eleven.

District twelve. The counties of Hardin, Larue, Bullitt and Meade shall be senatorial district number twelve.

District thirteen. The counties of Pike, Floyd and Knott shall be senatorial district number thirteen.

District fourteen. The counties of Nelson, Washington, Marion, Taylor and Green shall be senatorial district number fourteen.

District fifteen. The counties of Pulaski, Whitley and McCreary shall be senatorial district number fifteen.

District sixteen. The counties of Clinton, Cumberland, Monroe, Russell and Wayne shall be senatorial district number sixteen.

District seventeen. The counties of Knox, Laurel and Bell shall be senatorial district number seventeen.

District eighteen. The counties of Boyle, Garrard, Casey and Lincoln shall be senatorial district number eighteen.

District nineteen. The counties of Barren, Metcalfe and Adair shall be senatorial district number nineteen.

District twenty. The counties of Franklin, Anderson, Mercer and Spencer shall be senatorial district number twenty.

District twenty-one. The counties of Shelby, Oldham, Henry, Trimble and Carroll shall be senatorial district number twenty-one.

District twenty-two. The counties of Jessamine, Scott and Woodford shall be senatorial district number twenty-two.

District twenty-three. The part of Jefferson County which is bounded and described as follows:

Beginning on the north shore of the Ohio River at low water where Eighteenth Street if extended would intersect; thence southwestwardly with the center line of Eighteenth Street extended and Eighteenth Street to center line of Portland Avenue; thence southeastwardly with the center line of Portland Avenue to the center line of Eighteenth Street; thence southwestwardly and southwardly with the center line of Eighteenth Street to the center line of Rowan Street; thence west with the center line of Rowan Street to the center line of Twenty-fourth Street; thence south with the center line of Twenty-fourth Street to the center line of Main Street; thence west with the center line of Main Street to the old city boundary line of 1893; thence south with the old city boundary line of 1893, to the center line of the first alley south of Market Street; then west with the center of the first alley south of Market Street to the Kentucky and Indiana Terminal Railroad Company right of way; thence in a

southwardly direction with the center line of the Kentucky and Indiana Terminal Railroad Company right of way to a point 200 feet south of Broadway; thence east along a line 200 feet south of Broadway to the old city boundary line of 1893; thence north along the old city boundary line of 1893 to the center line of Elliott Avenue; thence east with the center line of Elliott Avenue to the center line of Twenty-sixth Street; thence south with the center line of Twenty-sixth Street to the center line of the first alley north of Broadway; thence east with the center line of the first alley north of Broadway to the center line of Twenty-fourth Street; thence south with the center line of Twenty-fourth Street to the center line of Broadway; thence east with the center line of Broadway to the center line of Dixie Highway; thence southwardly with center line of Dixie Highway to the present city boundary line; thence northwestwardly, northwardly, northwestwardly and southwardly along the present city boundary line and the present city boundary line extended to the west shore of the Ohio River at low water; thence northwardly, northeastwardly and southeastwardly along the west and north shore of the Ohio River at low water to a point where Eighteenth Street if extended would intersect, which is the point of beginning.

District twenty-four. The county of Kenton shall be senatorial district number twenty-four.

District twenty-five. The county of Campbell shall be senatorial district number twenty-five.

District twenty-six. The counties of Owen, Grant, Pendleton, Boone and Gallatin shall be senatorial district number twenty-six.

District twenty-seven. The county of Fayette shall be senatorial district number twenty-seven.

District twenty-eight. The counties of Bourbon,

Clark and Montgomery shall be senatorial district number twenty-eight.

District twenty-nine. The counties of Rockcastle, Jackson, Estill, Madison and Owsley shall be senatorial district number twenty-nine.

District thirty. The counties of Harrison, Nicholas, Bracken and Robertson shall be senatorial district number thirty.

District thirty-one. The counties of Mason, Fleming, Bath, Rowan, Menifee and Powell shall be senatorial district number thirty-one.

District thirty-two. The counties of Lewis, Carter, Greenup and Elliott shall be senatorial district number thirty-two.

District thirty-three. The counties of Harlan, Letcher, Perry, Leslie and Clay shall be Senatorial district number thirty-three.

District thirty-four. The counties of Morgan, Magoffin, Wolfe, Breathitt and Lee shall be senatorial district number thirty-four.

District thirty-five. The counties of Boyd, Lawrence, Johnson and Martin shall be senatorial district number thirty-five.

District thirty-six. The part of Jefferson County which is bounded and described as follows:

Beginning at a point on the north shore of the Ohio River at low water where the present city boundary line (east of the Cut Off Road) if extended, would intersect; thence southeast, northeast, southeast, northeast, southeast, and southwest with the present city boundary line to a point where it intersects the old city boundary line of 1921 (east of Fenley Avenue); thence southwestwardly with the old city boundary line of 1921 (which is the eastern boundary of the Louisville Water Company property), to the northwest boundary line of the Sacred Heart Academy property; thence southeast-

wardly, northeastwardly and southeastwardly along the boundary of the Sacred Heart property to the center line of Wentworth Avenue; thence northeast with center line of Wentworth Avenue to the center line of Crabb Lane; thence southeast with center line of Crabb Lane to the center line of Lexington Road; thence northeastwardly with the center line of Lexington Road to the present city boundary line; thence southeastwardly, southwestwardly, northwestwardly, southwestwardly, southeastwardly, southwestwardly, southeastwardly, westwardly, southeastwardly, southwestwardly, westwardly, northwestwardly, southwestwardly, southeastwardly, northeastwardly, southeastwardly, southwestwardly, southeastwardly, and southwestwardly along the present city boundary line to the center line of Louisville & Nashville Railroad Company right of way; thence northwest along the center line of Louisville & Nashville Railroad Company right of way to center line of Harlan Street; thence northeast with center line of Harlan Street, if extended to the center line of Floyd Street; thence north with the center line of Floyd Street to the old city boundary line of 1921; thence northeast with the old city boundary line of 1921 to the center line of Arthur Street; thence north with the center line of Arthur Street to the old city boundary line of 1893; thence east along the old city boundary line of 1893 to the center line of Preston Street; thence northwest and north with the center line of Preston Street, to the center line of Broadway; thence west with the center line of Broadway to the center line of Fifth Street; thence south with the center line of Fifth Street to the center line of St. Catherine Street; thence west with center line of St. Catherine Street to the center line of Garvin Place; thence south with the center line of Garvin Place, Garvin Place extended, St.

James Court and Fifth Street to the center line of H Street; thence west with the center line of H Street to the center line of Seventh Street; thence south with the center line of Seventh Street to the center line of Central Avenue; thence east with the center line of Central Avenue to the center line of Fourth Street; thence south with the center line of Fourth Street to the center line of old Third Street Road; thence southeast with the center line of old Third Street Road to the old city boundary line of 1921; thence northeast with the old city boundary line of 1921 to the center line of Southern Parkway; thence southwestwardly and southwardly with the center line of Southern Parkway to the center line of Kenwood Way; thence southeast with the center line of Kenwood Way to the center line of Third Street; thence south with the center line of Third Street to the present city boundary line; thence southwestwardly, southeastwardly, southwestwardly, westwardly, northwestwardly northwardly eastwardly, northwestwardly, northeastwardly, northwardly, northwestwardly, northeastwardly, northwestwardly, northeastwardly, northwestwardly, northeastwardly, northwestwardly, northwardly, northwestwardly, and southwestwardly along the present city boundary line and the present city boundary line extended to the west shore of the Ohio River at low water; thence southwardly along the west shore of the Ohio River at low water to a point where Salt River if extended would intersect; thence southeastwardly and northeastwardly with the line of Salt River if extended and Salt River and the Bullitt County line, to where it intersects the Spencer County line; thence northeastwardly with the Spencer County and Shelby County lines to where the Shelby County line intersects the Old-

ham County line; thence northwestwardly with the Oldham County line and the Oldham County line extended to the north shore of the Ohio River at low water; thence in a general southwestwardly direction with the north shore of the Ohio River at low water, to a point where the present city boundary line (east of the Cut Off Road) if extended would intersect, which is the point of the beginning.

District thirty-seven. The part of Jefferson County which is bounded and described as follows:

Beginning at a point on the north shore of the Ohio River at low water mark where Mill Street, if extended, would intersect; thence southeast with the center line of Mill Street, if extended, and Mill Street to the center line of Wenzel Street; thence south with the center line of Wenzel Street to the center line of Fehr Avenue; thence west with the center line of Fehr Avenue to center line of Campbell Street; thence north with center line of Campbell Street to the center line of Main Street; thence west with center line of Main Street to the center line of Shelby Street; thence south with center line of Shelby Street to the center line of the first alley south of Market Street; thence west with the center line of the first alley south of Market Street to the center line of Clay Street; thence south with the center line of Clay Street to the center line of Marshall Street; thence west with the center line of Marshall Street to the center line of Hancock Street; thence south with the center line of Hancock Street to the center line of Broadway; thence east with the center line of Broadway to the center line of Clay Street; thence south with the center line of Clay Street to the center line of the first alley north of Breckinridge Street; thence east with the center line of the first alley north of Breckinridge Street to the

center line of Shelby Street; thence south with the center line of Shelby Street to the center line of Breckinridge Street; thence west with the center line of Breckinridge Street to the center of the first alley west of Shelby Street; thence south with the center line of the first alley west of Shelby Street to the center line of Kentucky Street; thence west with the center line of Kentucky Street to the center line of Hancock Street; thence south with the center line of Hancock Street, Hancock Street extended, and Hancock Street to the center line of Knapp Street; thence northeast with the center line of Knapp Street to the center line of Shelby Street; thence south with the center line of Shelby Street to the old city boundary line of 1893; thence east along the city boundary line of 1893 to the center line of Hickory Street; thence southwest with the center line of Hickory Street and Hickory Street, if extended, to the center line of Delor Avenue; thence southeast with the center line of Delor Avenue to the old city boundary line of 1921; thence southwest along the city boundary line of 1921 to the center line of Shelby Street; thence southeast with the center line of Shelby Street to the present city boundary line; thence northeast, southeast, northeast, southeast, east, northeast, northwest, east, northwest, northeast, northwest, northeast, southeast, northeast and northwest along the present city boundary line to the center line of Lexington Road; thence southwest with the center line of Lexington Road to the center line of Crabbs Lane; thence northwest with the center line of Crabbs Lane to the center line of Wentworth Avenue; thence southwest with the center line of Wentworth Avenue to the easterly line of the Sacred Heart Academy property; thence northwesterly, southwestwardly and

northwestwardly with the lines of the Sacred Heart Academy property to the old city boundary line of 1921; thence with the old city boundary line of 1921, which is east of the Louisville Water Company property in a general northerly and northeastwardly direction to the present city boundary line of the city of Louisville (northeast of Fenley Avenue); thence northeast, northwest, southwest, northwest, southwest, and northwest with the present city boundary line and the present city boundary line extended to the north shore of the Ohio River at low water; thence southwest along the north shore of the Ohio River at low water to a point where Mill Street if extended would intersect, which is the point of beginning.

District thirty-eight. The part of Jefferson County which is bounded and described as follows:

Beginning at a point on the north shore of the Ohio River at low water where Mill Street, if extended, would intersect; thence southeast with the center line of Mill Street, if extended, and Mill Street, to the center line of Wenzel Street; thence south with the center line of Wenzel Street to the center line of Fehr Avenue; thence with the center line of Fehr Avenue to center line of Campbell Street; thence north with center line of Campbell Street to the center line of Main Street; thence west with the center line of Main Street to the center line of Shelby Street; thence south with the center line of Shelby Street to the the center line of the first alley south of Market Street; thence west with the center line of the first alley south of Market Street to the center line of Clay Street; thence south with the center line of Clay Street to the center line of Marshall Street; thence west with the center line of Marshall Street to the center line of Hancock

Street; thence south with the center line of Hancock Street to the center line of Broadway; thence east with the center line of Broadway to the center line of Clay Street; thence south with the center line of Clay Street to the center line of the first alley north of Breckinridge Street; thence east with the center line of the first alley north of Breckinridge Street to the center line of Shelby Street; thence south with the center line of Shelby Street to the center line of Breckinridge Street; thence west with the center line of Breckinridge Street to the center line of the first alley west of Shelby Street; thence south with the center line of the first alley west of Shelby Street to the center line of Kentucky Street; thence west with the center line of Kentucky Street to the center line of Hancock Street; thence south with the center line of Hancock Street, Hancock Street extended, and Hancock Street to the center line of Knapp Street; thence northeast with the center line of Knapp Street to the center line of Shelby Street; thence south with the center line of Shelby Street to the old city boundary line of 1893; thence east along the city boundary line of 1893, to the center line of Hickory Street; thence southwest with the center line of Hickory Street and Hickory Street extended to the center line of Delor Avenue; thence southeast with the center line of Delor Avenue to the old city boundary line of 1921; thence southwest along the city boundary line of 1921 to the center line of Shelby Street; thence southeast with the center line of Shelby Street to the present city boundary line; thence southwest, southeast, northeast, southeast, southwest, southeast and southwest along the present city boundary line to the Louisville & Nashville Railroad Company right of way; thence northwest along the center line of Louisville & Nashville

Railroad Company right of way to the center line of Harlan Street; thence northeast with the center line of Harlan Street if extended to the center line of Floyd Street; thence north with center line of Floyd Street to the old city boundary line of 1921; thence northeast with the old city boundary line of 1921 to the center line of Arthur Street; thence north with the center line of Arthur Street to the old city boundary line of 1893; thence east along the old city boundary line of 1893 to the center line of Preston Street; thence northwest and north with the center line of Preston Street to the center line of Broadway; thence west with the center line of Broadway to the center line of Fifth Street; thence south with the center line of Fifth Street to the center line of St. Catherine Street; thence west with the center line of St. Catherine Street to the center line of Garvin Place; thence south with the center lines of Garvin Place, Garvin Place extended to St. James Court and Fifth Street to the center line of "H" Street; thence west with the center line of "H" Street to the center line of Seventh Street; thence south with center line of Seventh Street to the center line of Central Avenue; thence east with the center line of Central Avenue to the center line of Fourth Street; thence south with the center line of Fourth Street to the center line of the old Third Street Road; thence southeast with the center line of the old Third Street Road to the old city boundary line of 1921; thence northeast with the old city boundary line of 1921 to the center line of Southern Parkway; thence southwestwardly and southwardly with the center line of Southern Parkway to the center line of Kenwood Way; thence southeastwardly with the center line of Kenwood Way to the center line of Third Street; thence south with the center line of

Third Street to the present city boundary line; thence southwestwardly, southeastwardly, southwestwardly, westwardly, northwestwardly, northwardly, eastwardly, northwestwardly, northeastwardly, northwardly, northwestwardly, northeastwardly, northwestwardly northeastwardly, northwestwardly, northeastwardly and northwestwardly along the present city boundary line to the center line of Dixie Highway; thence northeastwardly with the center line of Dixie Highway to the center line of Broadway; thence west with the center line of Broadway to the center line of Twenty-fourth Street; thence north with the center line of Twenty-fourth Street to the center of the first alley north of Broadway; thence west with the center line of the alley north of Broadway to the center line of Twenty-sixth Street; thence north with the center line of Twenty-sixth Street to the center line of Elliott Avenue; thence west with the center line of Elliott Avenue to the old city boundary line of 1893; thence south with old city boundary line of 1893 to a point 200 feet south of Broadway; thence west along a line of 200 feet south of Broadway to the center line of Kentucky and Indiana Terminal Railroad Company right of way; thence in a northwardly direction along the center line of the Kentucky and Indiana Terminal Railroad Company right of way to the center line of the first alley south of Market Street; thence east with the center line of the first alley south of Market Street to the old city boundary line of 1893; thence north with the old city boundary line of 1893 to the center line of Main Street; thence east with the center line of Main Street to the center line of Twenty-fourth Street; thence north with the center line of Twenty-fourth Street to the center line of Rowan Street; thence

east with the center line of Rowan Street to the center line of Eighteenth Street; thence northwardly and northeastwardly with the center line of Eighteenth Street to the center line of Portland Avenue; thence northwestwardly with the center line of Portland Avenue to the center line of Eighteenth Street; thence northeastwardly with the center line of Eighteenth Street and Eighteenth Street if extended to the north shore of the Ohio River at low water; thence in a general southeast direction of the north shore of the Ohio River at low water mark to a point where Mill Street if extended would intersect, which is the point of beginning.

All acts and laws in conflict herewith to the extent of such conflict are hereby repealed.

Disapproved March 18, 1930. Passed Senate March 19, 1930, the Governor's veto to the contrary notwithstanding. Passed House of Representatives March 20, 1930, the Governor's veto to the contrary notwithstanding.

CHAPTER 149.

AN ACT relating to revenue and taxation, imposing an excise or license tax on retail merchants, as the words "retail merchants" are used in this act; providing for the collection of such tax; the distribution and use of the revenue derived therefrom; the administration of said law, fixing fines and penalties for the violation of this act; declaring an emergency to exist, and repealing all laws in conflict with the provisions of this Act.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

§ 1. The words "retail merchant," as used in this act, shall mean and include every person, firm, association, co-partnership or corporation opening, establishing, operating or maintaining any "store," as defined herein, for the purpose of and selling